

Terms of Service

Effective Date: 01 September 2025

Last Updated: 16 September 2025

1. Acceptance of Terms

By accessing or using the WyzeSales Application, operated by CL Wyeth t/a Wyzelink, you agree to be bound by these Terms of Service ("Terms"). If you do not agree to these Terms, you may not access or use the Service.

2. Description of Service

WyzeSales is a sales analytics and business intelligence platform. At its core it gives sales and management teams a 360° view of performance: a dashboard tracking things like revenue target attainment, gross profit margin, sales coverage, rep target attainment, customer concentration, and returns/credit note rates, viewable across MTD, QTD, and YTD periods. Beyond the dashboard there's deeper sales analysis, year-on-year comparatives, breakdowns by customer/rep/product, a performance section for tracking reps against targets, and a budgeting module where targets get set and tracked against actuals. There's also a forecasting engine running in the background (Holt-Winters smoothing) that projects future sales from historical patterns. Data is fed in from each client's own sales/ERP data.

3. User Accounts

3.1 Account Creation

To access certain features, you must create an account by providing accurate and complete information. You are responsible for maintaining the confidentiality of your account credentials.

3.2 Account Responsibility

You are solely responsible for all activities that occur under your account. You must immediately notify us of any unauthorized use of your account.

3.3 Account Termination

We reserve the right to suspend or terminate your account at any time for violation of these Terms or for any other reason at our sole discretion.

4. User Conduct and Prohibited Uses

You agree not to:

- Violate any applicable laws or regulations
- Infringe upon the rights of others
- Upload, post, or transmit harmful, offensive, or illegal content
- Attempt to gain unauthorized access to the Service or other users' accounts
- Use automated systems (bots, scrapers) without permission
- Interfere with or disrupt the Service's operation
- Use the Service for commercial purposes without authorization
- Impersonate others or provide false information

5. Content and Intellectual Property

5.1 User Content

You retain ownership of content you submit to the Service ("User Content"). By submitting User Content, you grant us a worldwide, non-exclusive, royalty-free license to use, display, reproduce, and distribute such content in connection with the Service.

5.2 Our Intellectual Property

The Service and its original content, features, and functionality are owned by CL Wyeth t/a Wyzelink and are protected by copyright, trademark, and other intellectual property laws.

5.3 Copyright Policy

We respect intellectual property rights and will respond to valid copyright infringement claims in accordance with the Digital Millennium Copyright Act (DMCA).

6. Privacy Policy

Your privacy is important to us. Please review our Privacy Policy, which governs how we collect, use, and protect your information. By using the Service, you consent to our Privacy Policy.

7. Payment and Billing

7.1 Paid Services

Certain features may require payment. All fees are non-refundable unless otherwise stated or required by law.

7.2 Billing

For subscription services, you will be billed automatically on a recurring basis. You may cancel your subscription at any time by notifying us in writing with one calendar months notice.

7.3 Price Changes

We reserve the right to modify our pricing with reasonable notice to users.

8. Disclaimers and Warranties

8.1 Service Availability

The Service is provided "as is" and "as available." Although we strive to maintain and provide a consistent and reliable Service, we do not guarantee uninterrupted access or error-free operation.

8.2 Disclaimer of Warranties

TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

9. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, CL WYETH T/A WYZELINK SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR USE, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

IN NO EVENT SHALL OUR TOTAL LIABILITY EXCEED THE AMOUNT YOU PAID TO US IN THE SIX MONTHS PRECEDING THE CLAIM.

10. Indemnification

You agree to indemnify and hold harmless CL Wyeth t/a Wyzelink from any claims, damages, losses, or expenses arising from your use of the Service or violation of these Terms.

11. Modifications to Terms

We reserve the right to modify these Terms at any time. We will notify users of material changes by posting the updated Terms on the Service or by email. Continued use of the Service constitutes acceptance of the modified Terms.

12. Termination

Either party may terminate this agreement with one calendar months notice. Upon termination, your right to use the Service will cease immediately, and we may delete your account and associated data.

13. Governing Law and Dispute Resolution

13.1 Governing Law

These Terms are governed by the laws of the Republic of South Africa without regard to conflict of law principles.

13.2 Dispute Resolution

Any disputes arising from these Terms or the Service shall be resolved through binding arbitration in accordance with the rules of a mutually agreed upon arbitration authority except that either party may seek injunctive relief in court.

14. Severability

If any provision of these Terms is found to be unenforceable, the remaining provisions will continue in full force and effect.

15. Entire Agreement

These Terms constitute the entire agreement between you and CL Wyeth t/a Wyzelink regarding the Service and supersede all prior agreements and understandings.

16. Contact Information

For questions about these Terms, please contact us at:

CL Wyeth t/a Wyzelink

Email: support@wyzesales.com

Address: 65 Firmount Road, Briza, Somerset West, Western Cape, South Africa, 7130

Phone: +27 62 184 7381

By using WyzeSales Application, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service.